

Top 10 Best Practices for Anti-Drug & Alcohol Program Managers

PRESENTED BY NATA COMPLIANCE SERVICES

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2025 AEA International
Conference & Trade Show





Who is NATA Compliance Services?

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#1 – Use the New Hire Checklist

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- ▶ Missing a step when hiring or transferring an employee into a safety-sensitive role can mean large penalties when inspected.
- ▶ Staying organized can expedite the hiring of a new employee and get them on-boarded faster.



New Hire Checklist

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NEW HIRE CHECKLIST FOR SAFETY-SENSITIVE EMPLOYEES

Applicant Name: _____
Safety-Sensitive Role: _____

Designated Employer Representative (DER) aka Drug Program Manager Action Items

- ☐ 1. Notify applicant/employee of requirement to undergo pre-employment testing for the presence of marijuana, cocaine, opioids, phencyclidine (PCP) and amphetamines.

Date Notified: _____

- ☐ 2. Ask applicant/employee if they ever tested positive or refused a pre-employment drug or alcohol test administered by a DOT-regulated employer in the past two years, as required by 49 CFR § 40.25(j).

Date Asked: _____

- ☐ 3. Request Drug/Alcohol History Checks, as required by 49 CFR § 40.25 or PRIA AC 120-68G or later.

Date Requested: _____

- ☐ 4. Schedule DOT pre-employment drug test. *If your company's policy requires a pre-employment alcohol test, you must send the individual for both a pre-employment drug and alcohol test. These results must be received prior to hire.*

Date Scheduled: _____

#2 – Staying Prepared for an Inspection

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Inspections can happen at any time, so make sure you are always ready.

- Store all inspection items in one location for easy access.
- The New Hire Checklist is your best friend.

NATACS offers free inspection assistance for our Anti-Drug & Alcohol Program clients.

- Give us a call even if you don't have an inspection scheduled.

#3 – Review Pre-employment Test Results Prior to Hire

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Negative Test Result

- ▶ Applicant becomes eligible for hire, re-hire or transfer
- ▶ Hiring an individual prior to the verified negative test result is a violation

Positive Test Result

- ▶ Applicant is not eligible for hire, re-hire or transfer
- ▶ You are required to provide a list of DOT Substance Abuse Professionals (SAPs) in the applicant's area

#4 Medical Marijuana: DOT Notice

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“The Department of Transportation’s Drug and Alcohol Testing Regulation – 49 CFR Part 40, at 40.151(e) – does not authorize “medical marijuana” under a state law to be a valid medical explanation for a transportation employee’s positive drug test result.”

<https://www.transportation.gov/odapc/medical-marijuana-notice>



#4 – Marijuana: Recreational

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- ▶ State legalization
- ▶ Accidental ingestion



#4 Cont. CBD Products

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- ▶ Cannabidiol, also known as CBD, is used in many different products
- ▶ CBD products can contain THC, which is tested for in a DOT drug test



#4 Cont. DOT CBD Products Notice

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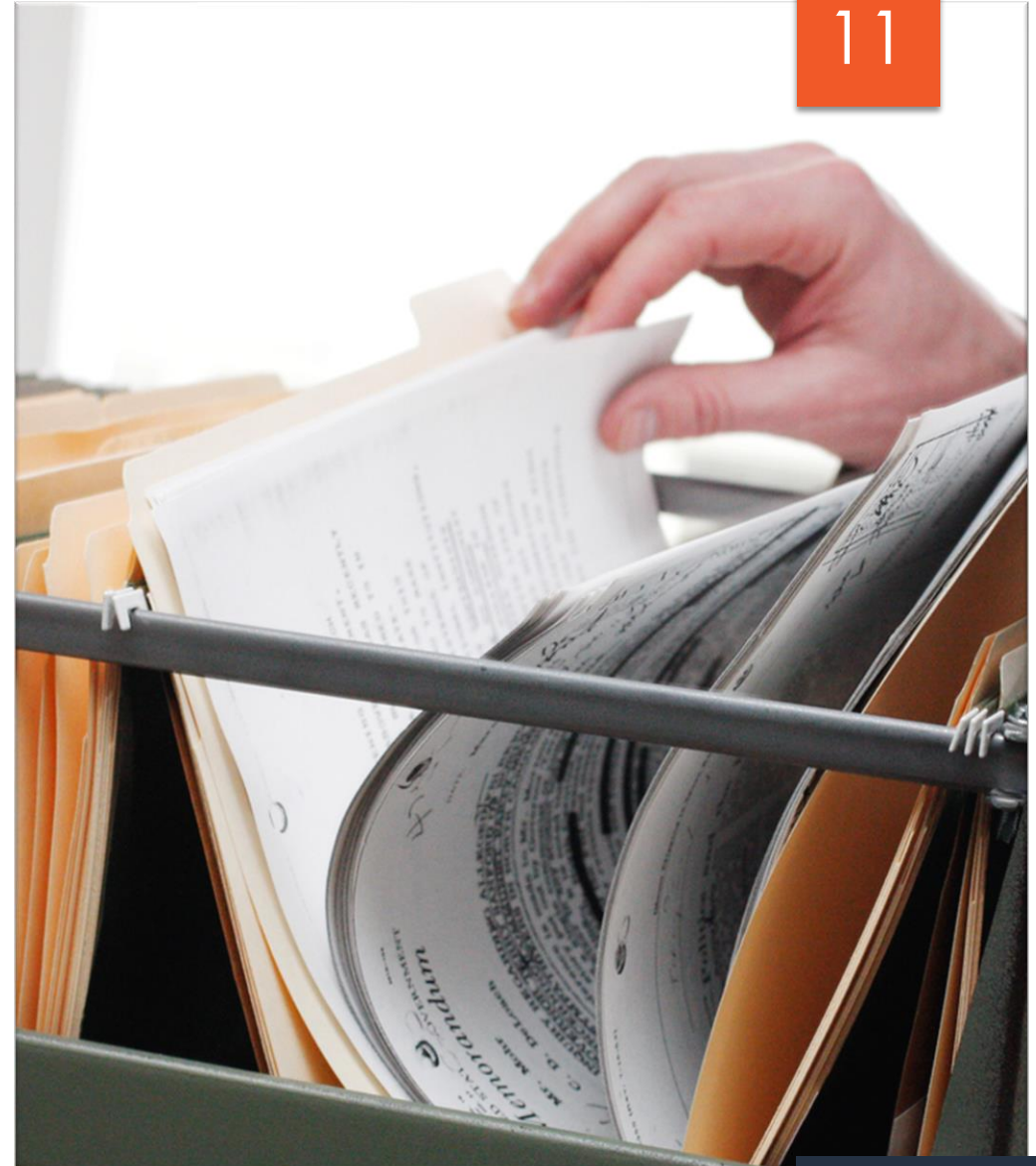
- ▶ *“The labeling of many CBD products may be misleading because the products could contain higher levels of THC than what the product label states.”*
- ▶ *“The Department of Transportation’s Drug and Alcohol Testing Regulation, Part 40, does not authorize the use of Schedule I drugs, including marijuana, for any reason.”*
- ▶ *“Furthermore, CBD use is not a legitimate medical explanation for a laboratory-confirmed marijuana positive result.”*

<https://www.transportation.gov/odapc/medical-marijuana-notice>

#5 – Use the Correct Forms

- ▶ Is it DOT or Non-DOT? Make sure you have the correct CCF.
- ▶ Alcohol tests do not use a CCF. The Alcohol Testing Form (ATF) will be provided by the collection site directly.

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#5 -Cont. DOT CCF Form

FEDERAL DRUG TESTING CUSTODY AND CONTROL FORM



SPECIMEN ID NO. **0000001** ACCESSION NO.

STEP 1: COMPLETED BY COLLECTOR OR EMPLOYER REPRESENTATIVE

A. Employer Name, Address, I.D. No. B. MRO Name, Address, Phone No. and Fax No.

C. Donor SSN, Employee I.D., or CDL State and No.

D. Specify Testing Authority: ☐ HHS ☐ NRC Specify DOT Agency: ☐ FMCSA ☐ FAA ☐ FRA ☐ FTA ☐ PHMSA ☐ USCG

E. Reason for Test: ☐ Pre-employment ☐ Random ☐ Reasonable Suspicion/Cause ☐ Post Accident ☐ Return to Duty ☐ Follow-up ☐ Other (specify) _____

F. Drug Tests to be Performed: ☐ THC, COC, PCP, OPI, AMP ☐ THC & COC Only ☐ Other (specify) _____

G. Collection Site Address: Collector Contact Info: Phone _____
Fax _____
Other _____

STEP 2: COMPLETED BY COLLECTOR (make remarks when appropriate). ☐ URINE ☐ ORAL FLUID

COLLECTION: ☐ Split ☐ Single ☐ None Provided, Enter Remark.

URINE: Collector reads urine temperature within 4 minutes. Temperature between 90° and 100° F? ☐ Yes ☐ No, Enter Remark ☐ Observed, Enter Remark

ORAL FLUID: Split Type: ☐ Serial ☐ Concurrent ☐ Subdivided Each Device Within Expiration Date? ☐ Yes ☐ No ☐ Volume Indicator(s) Observed

REMARKS:

STEP 3: Collector affixes seal(s) to bottle(s)/tube(s). Collector dates seal(s). Donor initials seal(s). Donor completes STEP 5 on Copy 2 (MRO Copy)

STEP 4: CHAIN OF CUSTODY - INITIATED BY COLLECTOR AND COMPLETED BY TEST FACILITY

I certify that the specimen given to me by the donor identified in the certification section on Copy 2 of this form was collected, labeled, sealed and released to the Delivery Service noted in accordance with applicable federal requirements.

SPECIMEN BOTTLE(S)/TUBE(S) RELEASED TO:

☒ Signature of Collector AM
PM
(PRINT) Collector's Name (First, MI, Last) Date (Mo/Day/Yr) Time of Collection Name of Delivery Service

RECEIVED AT LAB OR IITF:

☒ Signature of Accessioner Primary Specimen Seal Intact
☐ YES ☐ NO
If NO, Enter remark in Step 5A.
(PRINT) Accessioner's Name (First, MI, Last) Date (Mo/Day/Yr)

Primary/Single Specimen Device Expiration Date: (Mo/Day/Yr) Split Specimen Device Expiration Date: (Mo/Day/Yr)

STEP 5A: PRIMARY SPECIMEN REPORT - COMPLETED BY TEST FACILITY

☐ NEGATIVE ☐ DILUTE ☐ REJECTED FOR TESTING ☐ ADULTERATED ☐ SUBSTITUTED ☐ INVALID RESULT

☐ POSITIVE for: _____
Analyte(s) in ng/mL

REMARKS: _____
Test Facility (if different from above): _____
I certify that the specimen identified on this form was examined upon receipt, handled using chain of custody procedures, analyzed, and reported in accordance with applicable federal requirements.

☒ Signature of Certifying Technician/Scientist (PRINT) Certifying Technician/Scientist's Name (First, MI, Last) Date (Mo/Day/Yr)

STEP 5b: COMPLETED BY SPLIT TESTING LABORATORY

☐ RECONFIRMED ☐ FAILED TO RECONFIRM - REASON _____
I certify that the split specimen identified on this form was examined upon receipt, handled using chain of custody procedures, analyzed, and reported in accordance with applicable federal requirements.

☒ Laboratory Name Signature of Certifying Scientist (PRINT) Certifying Scientist's Name (First, MI, Last) Date (Mo/Day/Yr)

Laboratory Address

 Date (Mo/Day/Yr) **PLACE OVER CAP**

0000001 Donor's Initials

OMB No. 0930-0158

PRESS HARD - YOU ARE MAKING MULTIPLE COPIES

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#5 -Cont. Non-DOT CCF Form

FORENSIC DRUG TESTING CUSTODY AND CONTROL FORM

 Quest Diagnostics
800-877-7484

 80283214 2847701 SPECIMEN ID NO.

STEP 1: COMPLETED BY COLLECTOR OR EMPLOYER REPRESENTATIVE LAB ACCESSION NO.

A. Employer Name, Address, I.D. No.
AMSI/BAKER HUGHES INC
ANGELICA ROBERTS
17542 S 17TH ST STE 330
TUSTIN CA 92780
PH: 713-466-2936 FAX: 713-466-2920

B. MRO Name, Address, Phone and Fax No.
BENJAMIN GERSON, M.D.
UNIVERSITY SERVICES
10551 DECATUR RD STE 200
PHILADELPHIA PA 19154
PH: 800-624-3784 FAX: 215-637-6998

FORM ID: SAPH500037

*THIS CLIENT REQUIRES
*THAT SPLIT SPECIMENS
*BE SUBMITTED TO LAB

QUESTIONS REGARDING COLLECTION CALL AMSI 714-731-3084 FAX CCF 714-731-5569

C. Donor SSN or Employee I.D. No. _____

D. Donor Name: Last: _____ First: _____

E. Donor ID Verified: ☐ Photo ID ☐ Emp. Rep. _____

F. Reason for Test: ☐ Pre-employment (1) ☐ Random (3) ☐ Reasonable Suspicion/Cause (5) ☐ Post-Accident (2) ☐ Promotion (22)
☐ Return to Duty (6) ☐ Follow-up (23) ☐ Other (specify) (99) _____

G. Drug Tests to be Performed:
() 26938N SAP10-20/OP+MDA, 6M/T

H. Collection Site Name: _____ Collection Site Code: _____
Address: _____ Collector Phone No.: _____
City, State and Zip: _____ Collector Fax No.: _____

STEP 2: COMPLETED BY COLLECTOR
Read specimen temperature within 4 minutes. Is temperature between 90° and 100° F? ☒ Yes ☐ No, Enter Remark _____
Specimen Collection: ☐ Split ☐ Single ☐ None Provided (Enter Remark) _____ ☐ Observed (Enter Remark) _____

REMARKS

STEP 3: Collector affixes bottle seal(s) to bottle(s). Collector dates seal(s). Donor initials seal(s). Donor completes STEP 5.

STEP 4: CHAIN OF CUSTODY - INITIATED BY COLLECTOR AND COMPLETED BY LABORATORY

I certify that the specimen given to me by the donor identified in the certification section on Day 2 of this form was collected, labeled, sealed, and released to the Delivery Service noted in accordance with applicable requirements.

☒ Signature of Collector _____ Time of Collection _____ AM PM
(Print) Collector's Name (First, MI, Last) _____ Date (Mo./Day/Yr.) _____

SPECIMEN BOTTLE(S) RELEASED TO:
☐ Quest Diagnostics Courier ☐ FedEx
☐ Other _____ Name of Delivery Service Transferring Specimen to Lab _____

RECEIVED AT LAB: ☒
Signature of Accessioner _____
(Print) Accessioner's Name (First, MI, Last) _____ Date (Mo./Day/Yr.) _____

Primary Specimen Bottle Seal Intact
☐ Yes
☐ No, Enter Remark Below _____

SPECIMEN BOTTLE(S) RELEASED TO:

STEP 5: COMPLETED BY DONOR
I certify that I provided my specimen to the collector; that I have not adulterated it in any manner; each specimen bottle used was sealed with a tamper-evident seal in my presence; and that the information and numbers provided on this form and on the label affixed to each specimen bottle is correct.

☒ Signature of Donor _____ (Print) Donor's Name (First, MI, Last) _____ Date (Mo./Day/Yr.) _____
Daytime Phone No. () _____ Evening Phone No. () _____ Date of Birth _____ Mo. _____ Day _____ Yr. _____

TRACKING LABEL

	CENTER OVER CAP	SPECIMEN ID NUMBER
Donor's Initials	A	
Donor's Initials	B	

SPECIMEN ID NUMBER

#5 – Cont. Alcohol Testing Form

**U.S. Department of Transportation (DOT)
Alcohol Testing Form**
(The instructions for completing this form are on the back of Copy 3)

Step 1: TO BE COMPLETED BY ALCOHOL TECHNICIAN

A: Employee Name _____
(Print) (First, M.I., Last)

B: SSN or Employee ID No. _____

C: Employer Name _____
Street _____
City, State, Zip _____

DER Name and Telephone No. _____
DER Name _____ DER Phone Number _____

D: Reason for Test: ☐ Random ☐ Reasonable Susp ☐ Post-Accident ☐ Return to Duty ☐ Follow-up ☐ Pre-employment

STEP 2: TO BE COMPLETED BY EMPLOYEE

I certify that I am about to submit to alcohol testing required by US Department of Transportation regulations and that the identifying information provided on the form is true and correct.

Signature of Employee _____ Date _____/_____/_____
Month Day Year

STEP 3: TO BE COMPLETED BY ALCOHOL TECHNICIAN

(If the technician conducting the screening test is not the same technician who will be conducting the confirmation test, each technician must complete their own form.) I certify that I have conducted alcohol testing on the above named individual in accordance with the procedures established in the US Department of Transportation regulation, 49 CFR Part 40, that I am qualified to operate the testing device(s) identified, and that the results are as recorded.

TECHNICIAN: ☐ BAT ☐ STT DEVICE: ☐ SALIVA ☐ BREATH* 15-Minute Wait: ☐ Yes ☐ No

SCREENING TEST: (For BREATH DEVICE* write in the space below only if the testing device is not designed to print.)

Test #	Testing Device Name	Device Serial # <i>OR</i> Lot # & Exp Date	Activation Time	Reading Time	Result

CONFIRMATION TEST: Results *MUST* be affixed to each copy of this form or printed directly onto the form.

REMARKS:

Alcohol Technician's Company _____ Company Street Address _____
(PRINT) Alcohol Technician's Name (First, M.I., Last) _____ Company City, State, Zip _____ Phone Number _____

Signature of Alcohol Technician _____ Date _____/_____/_____
Month Day Year

STEP 4: TO BE COMPLETED BY EMPLOYEE IF TEST RESULT IS 0.02 OR HIGHER

I certify that I have submitted to the alcohol test, the results of which are accurately recorded on this form. I understand that I must not drive, perform safety-sensitive duties, or operate heavy equipment because the results are 0.02 or greater.

Signature of Employee _____ Date _____/_____/_____
Month Day Year

Form DOT F 1380 (Rev. 5/2008) OMB No. 2105-0529

COPY 1 – ORIGINAL – FORWARD TO THE EMPLOYER

Print Screening Results Here or Affix with Tamper Evident Tape

Print Confirmation Results Here or Affix with Tamper Evident Tape

Print Additional Results Here or Affix With Tamper Evident Tape

#6 – Collection Sites

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- ▶ Contact collection site prior to sending an employee for testing.
 - ▶ *Collection sites can have technical issues, staffing problems or even close their doors for business.*
- ▶ Make sure your employee knows exactly what type of test is to be conducted.
- ▶ Auditing collection sites is highly recommended.

#7 – Random Testing

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- ▶ If you are the Drug Program Manager and in the random pool, you only check your random selections when you are on duty and ready to be tested.
- ▶ All random selections must be completed by **December 31, 2025**.
 - ▶ *Best practice is to complete all tests within the selection period.*



#8 - Maintain Clear Company Policy

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- ☒ Does your company require pre-employment alcohol testing?
- ☒ Do you have a zero-tolerance policy for drug and alcohol violations?
- ☒ Have all safety-sensitive employees received a copy of your drug and alcohol company policy?

#9 - Keep Up on Training

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All Safety-Sensitive Employees

- ▶ Initial training is required
- ▶ Recurrent training is recommended

Reasonable Suspicion/Cause Determinations

- ▶ Initial and recurrent training is required
- ▶ Best practice is to complete recurrent training every 12-18 months

#10 – Read the Definitions

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- ▶ Post-accident tests can only be conducted when they meet the requirements in 14 CFR §120.7.

#10 – Definitions Example: Accident

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"The FAA and the National Transportation Safety Board (NTSB) define an *accident* as an occurrence associated with the operation of an aircraft which takes place between the time any person boards the aircraft with the intention of flight and all such persons have disembarked, AND in which any person suffers death or serious injury or in which the aircraft receives substantial damage. The NTSB regulations (49 CFR part 830) define "serious injury" and "substantial damage" as follows:"



#10 – Definitions Example Accident: Serious Injury/Substantial Damage

- ▶ “**Serious injury** means any injury which: (1) Requires hospitalization for more than 48 hours, commencing within 7 days from the date of the injury was received; (2) results in a fracture of any bone (except simple fractures of fingers, toes, or nose); (3) causes severe hemorrhages, nerve, muscle, or tendon damage; (4) involves any internal organ; or (5) involves second- or third-degree burns, or any burns affecting more than 5 percent of the body surface.”
- ▶ “**Substantial damage** means damage or failure which adversely affects the structural strength, performance, or flight characteristics of the aircraft, and which would normally require major repair or replacement of the affected component. Engine failure or damage limited to an engine if only one engine fails or is damaged, bent fairings or cowling, dented skin, small punctured holes in the skin or fabric, ground damage to rotor or propeller blades, and damage to landing gear, wheels, tires, flaps, engine accessories, brakes, or wingtips are not considered “substantial damage” for the purpose of this part.”

Definitions Example: DER

- ▶ ***DER must be a direct employee of the company per 49 CFR 40.3.***
- ▶ Designated employer representative (DER). An employee authorized by the employer to take immediate action(s) to remove employees from safety-sensitive duties, or cause employees to be removed from these covered duties, and to make required decisions in the testing and evaluation processes. The DER also receives test results and other communications for the employer, consistent with the requirements of this part.
- ▶ Service agents cannot act as DERs.

How do I report a drug and alcohol testing issue of noncompliance under the FAA's voluntary disclosure reporting program?

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- ▶ To report a voluntary disclosure issue of noncompliance...follow the FAA's Advisory Circular, AC 120-117, Voluntary Disclosure Reporting Program for Apparent Violations of the Drug and Alcohol Testing Regulations, dated December 20, 2017.
- ▶ FAA Drug Abatement Division...+1.202.267.8442 or drugabatement@faa.gov.



Best Practices & Reminders:

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- ▶ Safety-sensitive employees cannot be hired or transferred until you receive the verified negative pre-employment test(s).
- ▶ Complete all generated random testing within that selection period.
- ▶ Call the collection site to ensure they are open and able to conduct a DOT test before notifying the employee.
- ▶ Ensure the employee knows what type of DOT random test they are taking to mitigate the risk of error.



Questions?

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Thank you for attending!

SCAN ME



- ▶ New Hire Checklist
- ▶ Records/Documents Necessary for Inspection
- ▶ FAA Inspection Guide

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